GRACE COMMUNICATIONS (PRIVATE) LIMITED
versus
THE PERMANENT SECRETARY, MINISTRY OF LOCAL GOVERNMENT AND PUBLIC WORKS N.O
and
BLUEGEN CONSULTANTS (PRIVATE) LIMITED
and
FORIT CONTRACTING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE & HOVE JJ
HARARE; 4 & 17 June 2026

Urgent Chamber Application

A Mtima, for the applicant
D Machingauta, for the respondent
T Runganga, for the 2nd respondent
T G Kuchenga, for the 3rd respondent

DEMBURE J: This is an opposed urgent chamber application for an interim interdict. The application is made in terms of r 60(1) of the High Court Rules, 2021. On 4 June 2026, after hearing from the parties' legal practitioners, I granted a provisional order in favour of the applicant in the following terms:

> "INTERIM ORDER GRANTED
> Pending determination of this matter, the Applicant is granted the following relief –
>
> 1. Pending the determination of this matter, the Respondents, their assignees, employees and/or agents are hereby interdicted and restrained from conducting any subdivision and developments on a certain piece of land situate in the District of Salisbury called Stand 163 Quinnington Township 4 of Quinnington of Borrowdale Estate measuring 12.6314 hectares.
> 2. The second and third Respondents, their assignees, employees and/or agents be and are hereby barred from entering and/or engaging in any activities at Applicant's property described in paragraph 1 above.
>
> SERVICE OF PROVISIONAL ORDER
>
> This Provisional Order shall be served on the Respondents or their legal practitioners by the Applicant's legal practitioners."

I outlined the reasons for my decision, which are also part of the record. I subsequently received a request from the applicant's legal practitioners for the written reasons thereof. These are they.

THE PARTIES

The applicant is Grace Communications (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe. The first respondent, the Permanent Secretary of the Ministry of Local Government and Public Works, cited in his official capacity as the administrative authority within the Ministry. The second respondent is Bluegen Consultants (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe. Lastly, the fourth respondent is Forit Contracting (Private) Limited, also a company duly incorporated in accordance with the laws of Zimbabwe.

THE BACKGROUND FACTS

The dispute between the parties concerns an immovable property, being a certain piece of land situate in the District of Salisbury called stand number 163, Quinnington Township 4 of Quinnington of Borrowdale Estate, measuring 12, 6314 hectares (*"the property"*). The applicant averred that it is the registered owner of the property in terms of the registered Deed of Transfer number 1570/2004. It was further pleaded that the said title deed was never cancelled and the land remains private land owned by the applicant.

It was further pleaded that on 28 May 2026, the applicant's directors found the third respondent's employees with equipment on the applicant's land, clearing it without the applicant's knowledge or approval. They were informed that the third respondent's employees were clearing the land at the second respondent's instruction, who had contracted them. Further enquiries led the applicant to the Surveyor General's office, where it was advised that the property was subject to a subdivision process with a layout plan approved through the first respondent, who had allocated the land to the second respondent. It was averred that the land was never acquired by the State and could not be legally allocated to the second respondent. An interim interdict was sought, as it was pleaded that the applicant had satisfied the requirements for such an order. The applicant seeks the following final relief on the return day:

> "1. The second Respondent, third Respondent, their assignees, employees and/or agents are hereby permanently interdicted from interfering with the Applicant's rights in a certain

piece of land situate in the District of Salisbury called Stand 163 Quinnington Township 4 of Quinnington of Borrowdale Estate measuring 12.6314 hectares held under Deed number 1570/2004 by selling, alienating the land, or otherwise dispose of the land in any manner.

2. The allocation of the land described in paragraph 1 above by the first respondent to the second Respondent was illegal, null and void.

3. The first Respondent is ordered to reverse all the land allocated to the second Respondent forthwith and to cancel any layout approvals made in second Respondent's favour.

4. Costs of this application shall be borne by the first Respondent, second Respondent and third Respondent jointly and severally, the one paying the other to be absolved, on a higher scale."

This application was filed on 2 June 2026. It was duly served on the first respondent on the same date at 11:58 am. On the same date, the application was also served on the second and third respondents at 10:45 am and 11:17 am, respectively. The papers were placed before me on the same date, and I instructed the Registrar to set down the matter for hearing on 4 June 2026 at 2 pm. At the time, the matter was heard, only the third respondent had filed a notice of opposition. In its notice of opposition, the third respondent denied any involvement in the property in question. It stated that the second respondent had never been contracted to work on the land in question. It further denied having any employees or equipment on the site in question and contended that it was wrongly cited as a party to these proceedings. It was also of the view that it has been dragged into these proceedings such that the applicant can sanitise the urgency of the matter. Accordingly, the prayer was for the application as against it to be dismissed with costs on a legal practitioner and client scale.

The first and second respondents failed to file their opposing papers, and their application for postponement of the hearing was refused. The parties' legal practitioners made the following submissions on the merits.

ORAL SUBMISSIONS MADE FOR THE PARTIES

APPLICANT'S SUBMISSIONS

Mr *Mtima* submitted that before the court is an application for an interim interdict, and the draft order appears at p 31 of the application. The relief being sought at this juncture is interim in nature. He went on to make submissions on the three requirements for an interim interdict as follows. It is trite that an applicant for an interim interdict ought to establish a *prima*

facie right. The applicant attached a title deed for the property. It is valid and enforceable against the whole world and has not been set aside by a competent order. It also attached Annexure C, being a statement of the bills in respect of the property.

It was further argued that on the second leg of the application, that is, the issue of prejudice or balance of convenience, it must be noted that the first respondent allocated the land to the second respondent. There is correspondence with the Surveyor General and an approved layout plan. One cannot give what he or she does not have. The first respondent cannot unilaterally give rights to any person in light of a property which is under title. In respect of the second respondent, counsel argued that he implored me to take judicial notice of the second respondent's admission that it is contracting on the ground and bleeding financially. The second respondent admitted that work is underway to the applicant's prejudice. The court was also referred to the letter dated 28 January 2026 from the surveyor involving the second respondent.

In relation to the third respondent, counsel submitted that there are averments made by the applicant in para(s) 15 and 16 that they visited the site on 28 May 2026 and saw the third respondent's employees and its equipment. Upon inquiry, they said they were clearing land on behalf of the third respondent, the contractor, and that this was done without the applicant's authority or consent. The applicant has been deprived of the right to use and possess the said land without interference from third parties. Counsel also argued that there is no alternative remedy. Irreparable harm will be caused as the applicant will lose its private property, and should the court not grant the interim relief sought, it will undermine the superiority of title deeds. There will be significant financial loss to the applicant, and the applicant will have no other recourse at law. It was finally submitted that the applicant has satisfied all the requirements for the interim relief sought.

FIRST RESPONDENT'S SUBMISSIONS

Mr *Machingauta* stated that he had no submissions to make. When I asked whether there would be any prejudice to the first respondent if interim relief was to be granted pending the return date, he submitted that he did not think there would be. He, however, insisted that this was his own personal opinion as he had no instructions from the first respondent on the issue.

SECOND RESPONDENT'S SUBMISSIONS

Mr *Runganga* submitted that on the issue of the title deed attached at p 20 of the application, investigations that have been made so far by the second respondent established that the title deed is not authentic and does not even appear in the records of the Deeds Registry. He claimed that this was confirmed by a letter dated 18 May 2026. It was further argued that, in light of that, the argument of a *prima facie* right or clear right does not hold water as submitted by the applicant. When I asked counsel how the court should consider those submissions in the absence of evidence or any supporting document placed before me, he conceded that at this stage there was nothing from the second respondent to stand on. He further submitted that the issue can be fully ventilated on the return date, while at this stage, all the processes at the site are stopped. Mr *Runganga* further conceded on the grant of the provisional order pending the return day. This is so because they had not submitted any rebuttal to the applicant's documentary evidence. He also stated that he would fully associate himself with the submissions that were made by the first respondent.

THE THIRD RESPONDENT'S SUBMISSIONS

Mr *Kuchenga* submitted that the third respondent's position is that the application be dismissed specifically against the third respondent. In para 15 of the applicant's founding affidavit, the applicant states that on 28 May 2026, its directors visited the land in question and found the third respondent's employees and equipment on the applicant's property, clearing the land without the applicant's knowledge, but this is extensively disputed. The third respondent does not have machinery on the property in question. The third respondent has never been contracted to clear the land. Counsel argued that the only reasonable inference as to why the third respondent has been dragged to court is to sanitise this application.

It was further argued that the applicant is not being candid for the simple reason of misleading the court into believing that the matter is urgent. When I queried whether the position adopted by the third respondent, given the averments in the said paragraph by the applicant, would create a triable issue or an issue for full argument and determination on the return date, counsel argued that an application stands or falls on its founding. He stated that inasmuch as that creates a material dispute of fact, he would admit that surely this aspect has been clearly traversed and denied, but a reading of para 15 shows that none of the people who saw people on

the applicant's property took a picture. In these days of smartphones, they should have taken a picture of the equipment's registration number or any excavator.

Counsel further submitted that the court ought to take a robust approach regarding the third respondent. The third respondent has nothing to do with the dispute between the first and second respondents. The fact that the third respondent was on the ground was not sufficiently supported. Especially if one considers the fact that the founding affidavit does not name the directors. There is no basis to conclude that, on a *prima facie* basis, the third respondent was there. He also submitted that Mr *Runganga* did not make submissions to the effect that they contracted with the third respondent. The third respondent was specifically brought into these proceedings to sanitise the urgency. There is malice, as he could not appreciate why the applicant would just drag the third respondent to court out of nowhere. It may have been dragged into this, as it is arguably one of the biggest contracting companies in Zimbabwe. It does not know why it was cited as a party.

Mr *Kuchenga* went on to argue that the third respondent neither allocates land nor claims ownership of it. It was never on the property. The application is frivolous and malicious against the third respondent. Costs on a higher scale should be granted against the applicant. Counsel cited the case of *Cliff Investments (Pvt) Ltd* v *Grant Home Centre (Pvt) Ltd* HH 12/18. There is no reason to cite the third respondent. The applicant's counsel did not dispute the issue of whether or not the third respondent was on the ground. He did not specifically address that aspect. There is no material dispute of fact on that aspect. That which is not disputed is taken to have been admitted. There was recklessness on the part of the applicant. Counsel finally submitted that the application as against the third respondent be dismissed with costs on a legal practitioner and client scale.

APPLICANT'S REPYING SUBMISSIONS

Mr *Mtima* submitted that the applicant made a positive allegation regarding the third respondent's involvement, as articulated in his earlier submissions. Once a positive allegation is made at this stage, the court considers a *prima facie* case rather than establishing a case on the balance of probabilities. A reasonable inference should be made by the court. There is an admission by the second respondent that there are contractors, thereby supporting the applicant's allegation that there was a contracting party; surely a reasonable inference can be drawn. What

the third respondent raised is within the realm of a non-joinder or misjoinder of a party, which does not defeat the case. That principle, being applied at this interim stage, supports the reasonable inference that the court can make. The submissions on the issue of malice are bare allegations. There cannot be malice, but a litigant who is acting within the realm of rights which are enforceable against the whole world, including the third respondent.

It was further argued that costs on a higher scale are not warranted. That costs are within the discretion of the court, and that discretion is used judiciously. Judicial use of that discretion will not allow the court to order costs in the event that the applicant would have established a *prima facie* case. Costs will follow the cause. Obviously, at this stage, costs are not awarded in interim relief but will be awarded at the confirmation of these proceedings. That issue of costs will be dealt with at that stage. The submissions on the issue of costs are without merit, nor does it even arise at this stage.

When I asked counsel to relate to the submissions by Mr *Kuchenga* that the applicant did not dispute the third respondent's averments, counsel stated that there was a positive allegation made that the third respondent was working on the ground. See para(s) 15 and 16 of the founding affidavit. Once a denial is made, the issue becomes triable. It cannot be resolved at this stage. The parties will file subsequent pleadings, and the issue will be addressed on the return day.

ISSUE FOR DETERMINATION

The question I must determine is whether the applicant has satisfied the requirements for an interim interdict.

THE LAW AND ITS APPLICATION TO THE FACTS

An interim interdict is an extraordinary remedy, the grant of which is within the discretion of the court. The requirements for an interim interdict are well-settled. The applicant must satisfy all the following requirements, namely: (i) a *prima facie* right, though open to some doubt; (ii) a well-grounded apprehension of irreparable harm; (iii) that the balance of convenience favours the granting of the interim relief and (iv) that there is no other satisfactory ordinary remedy. The law was restated in *Movement for Democratic Change (Tsvangirai) & Ors* v *Timveos & Or*s SC 09/22 at pp 9-10, where CHITAKUNYE JA said:

> "It is a settled principle that for a party to be entitled to an interdict, he or she has to satisfy the Court that their particular case favours such with regards to the requirements for the granting of

> the interdict. An interdict is a summary court order, usually issued upon application, by which a person is ordered either to do something, stop doing something or refrain from doing something in order to stop or prevent an infringement of a certain right. The requirements for an interim interdict were set out in *Setlogelo* v *Setlogelo* 1914 AD 221 at 227 as:-
>
> > "i. A *prima facie* right, even if it be open to some doubt;
> >
> > ii. A well-grounded apprehension of irreparable harm if the relief is not granted;
> >
> > iii. That the balance of convenience favours the granting of an interim interdict;
> >
> > iv. That there is no other satisfactory remedy"
>
> If the above conditions are met, then the Court may grant the provisional order sought and provide for a return date for the parties to then make arguments on whether or not the final order sought can be granted. On the return day, a party ought to establish a clear right as opposed to a *prima facie* right."

It is clear that in an application of this nature, the applicant must establish a *prima facie* case. It does not have to establish its case on a balance of probabilities. Thus, a *prima facie* case "does not have to be established on a balance of probabilities but can be granted even though open to doubt. A provisional order granted on the basis of a *prima facie* case affords the parties opportunity to fully argue their case on the return date": *per* CHITAKUNYE JA in the *Movement for Democratic Change (Tsvangirai) & Ors* case (*supra*) at p 10.

The purpose of an interim interdict or injunction is to preserve the *status quo* pending a trial of the matters, a full argument, or a resolution of conflicts of evidence and hard questions of law on the return date. The proper approach which should be adopted in respect of an interim interdict was fully set out in *Attorney General* v *Punch Limited & Anor* [2002] UKHL 50 para 99, where it was aptly stated that:

> "The court must, of course, have a good reason for granting an order of this kind. It must be satisfied in the first place that a sufficient ground has been stated to show that there is a real dispute between the parties. As Lord Diplock put it in *American Cyanamid Co* v *Ethicon Ltd supra* at p 407, the court must be satisfied that there is a serious question to be tried. It must then consider whether the balance of convenience lies in favour of granting or refusing an interlocutory injunction. <u>But it is in no position to reach a final decision at the interlocutory stage on the matters which are in dispute between the parties. It is no part of the court's function at that stage to resolve conflicts of evidence or questions of law that require detailed argument. All it can do is preserve the *status quo* in the meantime until these matters can be determined at the trial."</u> (*my emphasis*)

See also the celebrated English case of *American Cyanamid Co* v *Ethicon Ltd* [1975] AC 396.

I must be satisfied that the applicant has established a *prima facie* case which would warrant the granting of the interim order sought, preserving the *status quo* pending the return day, where full argument and conflict of evidence can be resolved. I now turn to consider the requirements for the grant of an interim interdict and relate that to the case before me.

With regard to the first requirement, it is clear that the applicant has proved a *prima facie* right under substantive law, which the court can protect. The applicant is the registered owner of the property in question. It produced a deed of transfer at p 21-22 of the application. It is trite that a title deed is *prima facie* proof of ownership of an immovable property. See *CBZ Bank Ltd* v *Moyo & Anor* SC 17/18 at p 7. In addition to that title deed, it also produced a statement of the rates account from the local authority, the City of Harare. There was no evidence that such title was cancelled by an order of a competent court, nor was it shown that the property was at any stage acquired by the State. The applicant, as the owner, is entitled to the protection of the law in respect of the respondents' alleged unlawful conduct. The first respondent did not oppose the application. The settled principle of the law is that what is not denied in affidavits is taken to have been admitted. See *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (S).

While the second respondent's counsel argued that the title deed is not authentic and does not exist, there was no evidence before me to rebut the applicant's evidence. Mr *Runganga* had to concede that he had nothing to challenge the applicant's case with. That concession resolved the matter as against the second respondent. In respect of the third respondent, the applicant pleaded the cause of action against the third respondent in para(s) 15-16. It was stated as follows:

> "15. On the 28th day of May 2026, the Applicant's directors visited the land in question as part of their routine site visits and found the third Respondent's employees and equipment on the Applicant's property clearing the land without the Applicant's knowledge and approval.
>
> 16. Upon enquiry, it was established that the third Respondent's employees were clearing the land in question at the instruction and directive of the second Respondent who had contracted them."

These averments were disputed in the third respondent's opposing affidavit. The sting of its defence is to deny any involvement with the second respondent and with the land in question. Mr *Kuchenga* also strenuously argued that the evidence was insufficient to establish even a *prima facie* case in the absence of photographs of the alleged equipment. He argued that in this

day and age, at least the photos must have been taken. That the court ought, therefore, not to accept the applicant's case but dismiss it entirely. I do not agree that the court can properly resolve this serious conflict in the evidence that has arisen at this stage. Taking the clue from the decision in the *American Cyanamid Co* v *Ethicon Ltd* (*supra*) as well as *Attorney General* v *Punch Limited & Anor* (*supra*), it is not the function of the court at this particular stage to resolve any serious conflict of evidence or resolve the triable issues which ought to be determined on the return day. As long as the applicant has shown a *prima facie* case that there is indeed a triable or arguable issue on the return day, the court ought to grant an interim injunction preserving the status quo pending the final determination of the dispute. This is also the case, as it is accepted that the applicant establishes only a *prima facie* right, though open to some doubt, rather than a clear right established on a balance of probabilities.

Mr *Kuchenga* argued that the court take a robust, common-sense approach to resolve the conflict in the evidence. But what is clear is that the applicant makes a positive averment that it found the third respondent's employees and equipment on its land while clearing it on the instruction of the second respondent. The third respondent is linked to the alleged illegal conduct on the applicant's property. While the third respondent denies being completely involved, this cannot be taken as fact at this stage. The applicant has shown a *prima facie* case which the respondents can rebut on the return day. It would be the function of the court on the return day to consider whether or not the applicant would have discharged its *onus* to establish a clear right on a balance of probabilities. I am satisfied that, at this stage, the third respondent has been sufficiently connected to the alleged unlawful conduct and is associated with the second respondent. The applicant, therefore, has established a *prima facie* right, though open to some doubt as against the third respondent, which warrants the protection of the court. The respondents ought to be barred from any further developments and entry into the applicant's property pending the full argument and determination on the return day.

The second requirement has also been established. There is well-grounded apprehension of irreparable injury or harm. It has been shown that the first respondent indeed took steps to allocate the applicant's property to the second respondent. There is communication from the Surveyor General relating to the second respondent, and for this piece of land, there is an approved layout plan and an ongoing subdivision process. There are also further developments on the site, as alleged, being undertaken by the third respondent under a contract with the second

respondent. The applicant has shown that it holds an extant title deed to this land, which is considered *prima facie* evidence of ownership of the property. At this stage, where there is no evidence to the contrary, it is clear that the applicant will suffer irreparable harm, as its land is being parcelled out and developed without its consent. As the owner, it has the exclusive right to possess and use it for its own purposes. The encroachment thus not only threatens the enjoyment of its ownership rights but also its plans to develop the land. That would constitute irreparable harm. I am satisfied that the alleged illegal conduct clearly gives rise to a reasonable apprehension of harm; if the relief is not granted, the applicant may certainly lose its property to the respondents, who have not yet proved any lawful right to the property.

In respect of the balance of convenience, it certainly favours the applicant. The status quo must be preserved pending the return day. The applicant stands to suffer greater prejudice if the developments are permitted to proceed before the matter is fully determined. The developments have an effect of altering the nature and outlook of the whole piece of land, interfering completely with the applicant's own plans to utilise its own property. These developments would be irreversible if not arrested, given that the applicant maintains that it solely owns the property and has not granted the respondents any authority to carry out the subdivisions and developments thereon. On this requirement, the first and second respondents conceded that they would not suffer any prejudice if the interim order is granted pending full argument on the return day. I also cannot find any prejudice that the third respondent may reasonably suffer as the sting of its defence is to disassociate itself completely from the property or any of the respondents.

The fourth requirement is also met, that the applicant has no other satisfactory ordinary remedy in the circumstances. It is trite that the alternative remedy must provide similar protection that is adequate and effective. The interim order sought is the only effective ordinary remedy to preserve the *status quo* pending the full argument on the dispute on the return day.

I am satisfied that the applicant has satisfied all the requirements for the interim relief sought. A *prima facie* case has been made for the grant of a provisional order in terms of the draft order.

I agree with Mr *Mtima* that the issue of costs does not arise at this stage. It is to be properly considered in the proceedings for the confirmation of the provisional order. Accordingly, a provisional order was granted as follows:

"INTERIM ORDER GRANTED
Pending determination of this matter, the Applicant is granted the following relief –

1. Pending the determination of this matter, the Respondents, their assignees, employees and/or agents are hereby interdicted and restrained from conducting any subdivision and developments on a certain piece of land situate in the District of Salisbury called Stand 163 Quinnington Township 4 of Quinnington of Borrowdale Estate measuring 12.6314 hectares.
2. The second and third Respondents, their assignees, employees and/or agents be and are hereby barred from entering and/or engaging in any activities at Applicant's property described in paragraph 1 above.

SERVICE OF PROVISIONAL ORDER

This Provisional Order shall be served on the Respondents or their legal practitioners by the Applicant's legal practitioners."

DEMBURE J: ……

HOVE J: …… Agrees

Jiti Law Chambers, applicant's legal practitioners
James Majatame Attorneys at Law, third respondent's legal practitioners